

DISSENTING OPINION
BY MM. DE BUSTAMANTE, ALTAMIRA, SCHÜCKING
AND JONKHEER VAN EYSINGA.

[*Translation.*]

The undersigned are unable to concur in the judgment of the Court in regard to points 1 to 5 of the application instituting proceedings. They confine themselves to attaching to the judgment this dissenting opinion in regard to the first point.

The *sedes materiae* of the question whether the Governor of the Memel Territory has the right to dismiss the President of the Directorate is to be found in paragraph 2 of Article 17 of the Statute of the autonomous unit of Memel, which runs as follows :

“The President shall be appointed by the Governor and shall hold office so long as he possesses the confidence of the Chamber of Representatives. The President shall appoint the other members of the Directorate. The Directorate must enjoy the confidence of the Chamber of Representatives and shall resign if the Chamber refuses it its confidence. If, for any reason, the Governor appoints a President of the Directorate when the Chamber of Representatives is not in session, it shall be convened so as to meet within four weeks after the appointment to hear a statement from the Directorate and vote on the question of confidence.”

The autonomy which the authors of the Convention of Paris of May 8th, 1924, intended to confer on the Memel Territory is given very definite form in this provision. For once the President of the Directorate has been appointed by the Governor, the continuance in office of the President and of the other members of the Directorate is solely dependent on the confidence of the Chamber of Representatives. So long as the President possesses this confidence he remains in office ; as soon as he loses it, the Directorate will have to resign. If the Chamber is not in session when a new President is appointed by the Governor, it is to meet within a short space of time to vote on the question of confidence.

The apparent intention of these provisions is to make the continuance in office of the President of the Directorate appointed by the Governor—to speak only of the latter, since he alone is mentioned in point 1—dependent solely on the confidence of the representatives of the citizens of the autonomous unit of Memel. This holds good when the Chamber, under Article 12 of the Statute, is dissolved by the Governor in agreement with the Directorate, i.e. it holds good after an appeal to the electorate; in this case the new Chamber of Representatives decides the fate of the President and of the whole Directorate. It is not merely a question of parliamentary control over the activities of the President so long as the latter keeps within the limits of his constitutional duties; it is an organic rule to the effect that no authority other than the Chamber of Representatives can remove the President. What the authors of the Constitution of Memel meant to introduce for the very purpose of maintaining the autonomy of Memel, is parliamentary government in its most pronounced form, and it is difficult to point to another constitution in which the parliamentary character of the executive authority has been so carefully laid down in express terms as in the Statute of the autonomous unit of Memel, which is simply a constitution in treaty form. Of course it is also the first duty of the President of the Directorate himself scrupulously to observe the Statute; but in virtue of the very clear terms of Article 17 of the Statute, the only authority which can compel him to leave office is the Parliament in which the authors of the Statute reposed complete confidence in this respect. The right of the Chamber of Representatives to decide when the President of the Directorate is to leave office is so clearly stated in the Statute that, under the terms of Article 7 of the Statute itself, any power of dismissal on the part of the Governor, a power of which moreover no trace is to be found in the Statute, is excluded. For the same reason it seems arbitrary to endeavour to read Article 17 of the Statute as implying a right on the part of the Governor to dismiss the President of the Directorate.

It should be observed that the Statute is confined to indicating the main constructive lines of the autonomous unit of Memel. In this connection it was necessary to

indicate in what manner the period of office of a President was to be brought to an end *against his will*. The possibility of a President himself placing his resignation in the hands of the Governor, should he be compelled for reasons of health, domestic or other reasons, to do so, is an aspect of the matter which the Statute only hints at in the third sentence of the second paragraph of Article 17 ("for any reason"); moreover, this aspect is immaterial in the present case.

It follows from the foregoing that Article 17 of the Statute, the text of which is clear, by itself affords sufficient ground for a negative answer to the first question, namely, whether the Governor of the Memel Territory has the right to dismiss the President of the Directorate. By conferring on the Chamber of Representatives the right to terminate the political career of a President of the Directorate against his will, the Article excludes any right of dismissal on the part of the Governor.

The history of Article 17 of the Statute only tends to confirm this view.

The genesis of the Article reveals the existence of two tendencies. The Conference of Ambassadors, and later the Council of the League of Nations, wished to make the autonomy of the Memel Territory much greater than the Lithuanian Government, which represented the other tendency. The latter wished to reserve to the Governor control over the legislation of the Diet of Memel, a control which would apparently have covered not only the legality of such legislation—as provided in Article 16 of the Statute—but also its expediency. Furthermore, the Lithuanian Government wished the Governor to be the head of the executive authority of the autonomous territory; this would have placed in the hands of the Lithuanian Government a general control over the executive authority as well as general control over legislation. A Directorate enjoying the confidence of the Diet and solely responsible to it was to be chosen by the Governor, merely to assist him in the exercise of the executive power (*Lithuanian Yellow Book*, I, p. 120). The foregoing are merely some points from the "*Considérations générales lithuaniennes sur le futur Statut de Memel*" of March 26th, 1923; they will however suffice to

show that Memel's autonomy, if the views held by the Lithuanian Government had prevailed, would have been very restricted.

The Conference of Ambassadors had quite a different conception of the autonomy of Memel. As regards more particularly the executive authority, its intention was completely to exclude the Lithuanian Government from any part therein. The executive authority was to be exercised by a Directorate, the President of which was to be appointed by the Parliament and would choose the other members; the Directorate was to be responsible to this Parliament (*Yellow Book*, I, p. 123, Art. 14). Far from having any intention of placing the executive authority in the hands of an official of the Lithuanian Government, the Conference of Ambassadors had in view a definitely parliamentary executive authority.

The Lithuanian delegation at Paris accepted the views of the Conference of Ambassadors save on one point. They proposed to transfer the appointment of the President of the Directorate from the autonomous Parliament to the President of the Republic of Lithuania (*Yellow Book*, I, p. 139, Art. 19); it should be observed that the Lithuanian delegation did not add to the important right of appointing the President of the Directorate, which would thus pass to Lithuania, the right of dismissing him.

In its new draft of July 13th, 1923, the Conference of Ambassadors acceded to the desire expressed by Lithuania with regard to the appointment of the President of the Directorate by the President of the Republic (*Yellow Book*, I, p. 213, Art. 18); but, on the other hand, it thought it essential, in view precisely of this appointment of the President of the Directorate by the President of the Republic, more effectively to safeguard the Memel and parliamentary character of the Directorate. To this end, Article 18 of the draft of the Conference of Ambassadors of July 13th, 1923, states first, that the Directorate should consist of Memel citizens, and, secondly, this Article replaces the words "The Directorate is responsible to the Chamber" by the two following sentences: "The Directorate shall enjoy the confidence of the Chamber. The members of the Directorate collectively and individually shall resign if the Chamber refuses

them its confidence." The meaning of these two amendments is clear: they bring out the parliamentary and Memel character of the executive authority; it in no way follows that because the power to appoint the President of the Directorate was given, not to the Memel Parliament, but to the Lithuanian Government, the continuance in office of the President of the Directorate, although appointed by an act of the Governor, should henceforward depend upon this Lithuanian official. The parliamentary system still required that the Memel Parliament alone should be able to terminate the appointment of a President of the Directorate. But the formula providing for responsibility to Parliament which, combined with the right to dissolve Parliament, has brought about parliamentary government in many countries, has not, in other countries, had this result. Accordingly, recourse was often had to a more definite formula when, after the great war, new constitutions were established providing for a parliamentary system. This was the formula, now almost common form after the great war, which the Conference of Ambassadors substituted for the formula expressing the idea of responsibility to Parliament.

The Lithuanian delegation accepted the new Article 18 proposed by the Conference of Ambassadors; but, since no agreement could be reached on several other points, the Conference of Ambassadors later addressed itself to the Council of the League of Nations under Article XI of the Covenant.

By a Resolution of December 16th, 1923, the Council decided to appoint a commission of three persons to prepare a new draft convention (*Yellow Book*, II, p. 44). In its report (*Yellow Book*, II, pp. 86-87), the Commission, presided over by Mr. Norman Davis, repeats a declaration made by him at a meeting which the Commission had held with the Lithuanian delegation. This declaration has an important bearing upon the autonomy of the Memel Territory. The Commission there states that during its visit to Memel it was strongly impressed by the keen desire for autonomy shown by both the Lithuanian and the Memel elements of the Territory. It was to satisfy this keen desire for autonomy that the Commission tried "to arrange for the fullest possible autonomy for the district under the sovereignty of

the Lithuanian Republic". This attempt was facilitated by the fact that the Lithuanian Government contended "that the larger part of the population of the Memel Territory was of Lithuanian origin and sympathy and sincerely loyal to the Lithuanian Republic". The Commission felt that this fact further simplified the problem, as the Lithuanian Government would have no reason to fear or distrust an autonomous régime based on universal suffrage.

This declaration, which was repeated in the report of the Norman Davis Commission, shows that the latter certainly did not intend to formulate a less extensive autonomy than had been provided for in the last draft of the Conference of Ambassadors and that, perhaps, its proposals went even farther. Indeed, a comparison between the last draft of the Conference of Ambassadors and that of the Norman Davis Commission shows that Article 17 of the latter, the text of which is identical with Article 17 of the final Statute, strengthens in two other directions the parliamentary character of the Directorate. In the first place, Article 17 provides that should the Governor appoint a President of the Directorate when the Chamber is not in session, the latter shall be convened so as to meet within four weeks after the appointment of the President to pass or refuse a vote of confidence in the new President of the Directorate. The meaning of this addition is clear: the Chamber must be able at any moment to exercise its control over the continuance in office of the President.

In the second place, the text of the Norman Davis Commission aimed at safeguarding the Chamber's right to determine the political fate of a President of the Directorate from another danger which was not perhaps altogether theoretical. Suppose the President of the Directorate appointed by the Governor enjoyed the confidence of the Chamber; under the provision which replaced the formula of responsibility, he would not be bound to resign, but he might at any moment cease to please the Governor. What then? The Norman Davis Commission thought it worth while expressly to state that in this case too the fate of the President of the Directorate depended solely upon the Chamber; the President of the

Directorate "shall hold office so long as he possesses the confidence of the Chamber of Representatives". By this addition, which is very exceptional in constitutions, the dependence of the political fate of the President of the Directorate upon the will of Parliament and upon that will alone finds a two-fold support in the wording of the Statute: the Directorate must resign as soon as the Chamber refuses it its confidence; but, on the other hand, as long as he possesses that confidence, the President is entitled to remain in office.

From the foregoing observations, it follows that the history of Article 17 of the Statute simply confirms the truth which emerges from the very text of that Article itself, namely, that the Governor is not entitled to dismiss the President of the Directorate.

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The right of the Governor to dismiss the President of the Directorate has been claimed in virtue of the sovereignty acquired by Lithuania over the Memel Territory under Article 2 of the Convention of Paris of May 8th, 1924. It is argued that this sovereignty includes a right of "control" over acts of the Directorate which might be contrary, *inter alia*, to the Statute of Memel, and that this "control" in turn includes the right of the Governor to dismiss the President of the Directorate.

In this connection, the undersigned make the following observations.

It is true that the autonomous unit of Memel is under the sovereignty of Lithuania, to whom the Principal Allied Powers transferred, subject to the conditions laid down in the Convention of Paris, all the rights and titles ceded to them by Germany as regards the Memel Territory, in virtue of Article 99 of the Treaty of Versailles (Art. 1 and 2 of the Convention of Paris). But what does this sovereignty of Lithuania over the autonomous unit of Memel mean? If we disregard non-treaty international law and treaties binding Lithuania with the exception of the Paris Convention, this sovereignty is simply the residue left to the exclusive jurisdiction of

Lithuania by the Convention of Paris. And as the Statute annexed to the Convention reserves—in terms which, as stated above, are as precise as possible—to the Memel Chamber of Representatives, and not to the Governor, the right to dismiss the President of the Directorate, Lithuania's sovereignty over the autonomous unit of Memel does not include the right to dismiss the President of the Directorate. In view of the extensive character of the Memel autonomy, Lithuania's sovereignty over this Territory implies a very limited group of rights which, under the very terms of Articles 1 and 2 of the Convention and Article 17 of the Statute, does not include the right to dismiss the President of the Directorate. It does not seem to us possible to deduce from the notion of the sovereignty attributed to Lithuania a right on the part of the Governor to dismiss the President of the Directorate—a right which is not only not mentioned in the Statute but which, as stated above, is ruled out by the very definite wording of the Statute.

The Statute gives Lithuania, in certain very definite cases, a right to "control" acts which exceed the competence of the authorities of the Territory or which are incompatible with the provisions of Article 6 or with Lithuania's international obligations. In this connection, Article 16 of the Statute gives the Governor a right to veto laws passed by the Chamber of Representatives, if these laws exceed the competence of the authorities of the Territory, as laid down by the Statute, or if they are incompatible with the provisions of Article 6, or with the international obligations of Lithuania. It was not thought necessary that the Statute should supplement this right to veto laws already passed, by giving Lithuania a right to legislate in the place of the Chamber of Representatives, should the latter fail in its duty to pass a law prescribed by a convention upon a matter within the competence of the local authorities of the Territory (see Art. 4 of the Statute). Nor was it thought necessary that the Statute should give Lithuania a right of "control" over the executive authorities; in this connection, the authors of the Statute had apparently every confidence in the control which the Chamber of Representatives was to exercise over the Directorate under Article 17 of the Statute.

As regards the Governor's right to dismiss the President of the Directorate, considered as a means of "control" over the executive authority, it may be wondered, apart from the fact that this right is contrary to the Statute, why this is the only right which is claimed. In the first place, the very grave step of dismissing the President of the Directorate offers less guarantee of legality than that afforded by the administrative courts usually found in subdivisions of any given country (provinces, communes, etc.); and, secondly, the right of veto, or annulment, may operate equally well in the executive as in the legislative sphere. If therefore it is true, on the one hand, that there exist, besides the alleged right of the Governor to dismiss the President of the Directorate, many other means of realizing "control" by the Governor over the executive authority, and that, on the other, neither this right of dismissal by the Governor nor these other means are provided for in the Statute, it seems to us arbitrary to single out this one means, viz. the dismissal of the President of the Directorate by the Governor, without even showing that this is the only way to achieve effective "control".

(Signed) ANTONIO S. DE BUSTAMANTE.

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